

Court No. - 37

Case :- WRIT - C No. - 42073 of 2017

Petitioner :- Arun Kumar Shilpkar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sanjay Kumar Srivastava

Counsel for Respondent :- C.S.C.

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Put up day after tomorrow as fresh.

Order Date :- 11.9.2017

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Counsel for Respondent :- C.S.C., Suman Kumar Yadav

Hon'ble Amreshwar Pratap Sahi, J.

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Heard learned counsel for the petitioner.

The petitioner has come up raising a billing dispute contending that the bill dated 21st August, 2017 is an incorrect assessment of the consumption of electricity by the petitioner.

A supplementary affidavit has been filed today stating therein that no recovery proceedings or any other proceedings has been initiated.

What we find is that this is essentially a billing dispute which can be considered and disposed of by the Executive Engineer in terms of Clause 6.5 of the U.P. Electricity Supply Code, 2005.

Having heard learned counsel for the respondent, we dispose of the writ petition with liberty to the petitioner to file a certified copy of this order before the respondent no. 4.

The respondent no. 4 (Executive Engineer) to proceed and consider the said grievance of the petitioner and pass an appropriate order in accordance with law within three weeks of the date of presentation of the certified copy of this order. The Executive Engineer shall take into consideration any deposits made by the petitioner or any indication of incorrect billing as alleged by the petitioner and pass an order in respect thereof.

In the event, the dispute is resolved and the petitioner makes the payment with regard to the dues so settled. It will be open to the Executive Engineer to pass a consequential order with regard to the continuing of the connection.

The writ petition is **dispose of** with the said direction.

Order Date :- 13.9.2017

S. Chaurasia